

Tentative Rulings for August 5, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG05495	<i>WA Funding, Inc. vs. Clarity Community Management, Inc.</i> is continued to Thursday, August 6, 2026, at 3:30 p.m. in Department 501.
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Tentative Rulings for Department 501

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(20)

Tentative Ruling

Re: ***Melero v. City of Sanger et al.***
Superior Court Case No. 26CECG00595

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Demurrer to First Amended Complaint
Motion for Preference

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To overrule the demurrer. (Code Civ. Proc., § 430.10, subd. (e).)

To take the motion for preference off calendar, as no moving papers have been filed.

Explanation:

In this action multiple plaintiffs allege that they were victims of sexual assault perpetrated by J. Dewhawn Torrence, a police officer for the Sanger Police Department. He allegedly committed the assaults while on duty as a police officer and under color of law.

The first seven causes of action are brought by the seven plaintiffs (two since dismissed) for sexual assault and battery. Causes of action 8-14 are for Gender Violence (Civ. Code, § 52.4). Causes of action 15-21 are for Sexual Harassment (Civ. Code, § 51.9). The remaining causes of action are: 22. IIED; 23. Negligence; 24. Negligent Supervision; 25. Negligent Hiring and Retention; 26. Violation of Bane Act (Civ. Code, § 52.1); and 27. Stalking (Civ. Code, § 1708.7).

The City of Sanger and Sanger Police Department (collectively, "Sanger Defendants") demur to causes of action 8-29 on the grounds that they are barred by the statute of limitations applicable to the particular causes of action, and for failure to comply with the Government Claims Act. Torrence joins in the demurrer.

In 2019, the California Legislature added Code of Civil Procedure § 340.16(a) to revive and extend the statute of limitations ("SOL") for "actions for damages resulting from sexual assault" to up to 10 years from the date of the last act. "Sexual assault" is defined in subsection (b)(1) as: "any of the crimes described in Section 243.4, 261, 261.4, 287, or 289, or former Sections 262 and 288a, of the Penal Code, assault with the intent to commit any of those crimes, or attempt to commit any of those crimes." (Code Civ. Proc., § 340.16, subd. (b)(1).)

Sanger Defendants effectively contend that the extension of the SOL only extends to causes of action explicitly labeled “sexual assault,” and no other cause of action or legal theory.

As noted above, section 340.16 extends the SOL for “any civil action for recovery of damages suffered **as a result of** sexual assault ...” (Code Civ. Proc., § 340.16, subd. (a), emphasis added.) Sanger Defendants cite to no authority indicating that expansive language such as this would limit the provision only to causes of action specifically labeled “sexual assault.” The moving and reply papers are oddly lacking in any authority supporting their position.

Plaintiffs in the opposition rely on *Doe #21 v. CFR Enterprises* (2023) 93 Cal.App.5th 1199, an action against massage chain franchisees, alleging sexual battery among other causes of action, arising from sexual assault allegations against massage therapists. The superior court sustained demurrers without leave to amend on the ground the applications statutes of limitations barred various claims. Section 340.16 was subsequently enacted reviving claims related to sexual assault. The question was section 340.16(b)(3) revived only causes of action for sexual battery. As the statute currently reads, it applied to “any civil action for recovery of damages suffered as a result of sexual assault.” (*Id.* at p. 1209.) The court noted that subdivision (a) is not limited to causes of action for sexual assault/battery: it applies to “any civil action for recovery of damages suffered as a result of sexual assault.” (*Id.* at p. 1209.) The decision, however, does not resolve what causes of action benefit from the SOL extension, stating that it was “not prepared to hold that all their causes of action are revived, because the parties’ supplemental briefs do not address the application of the amended statute to each of the causes of action alleged by each of the plaintiffs. In particular, the parties say nothing about whether section 340.16(b)(3) revives plaintiffs’ causes of action under the UCL.” (*Id.* at p. 1210.) The appeals court remanded to the trial court to address the issue in the first instance.

Other courts, however, have recognized that “section 340.16, by its terms, is not limited to *claims* of sexual assault, but applies to *any action* seeking damages as a result of sexual assault, regardless of the legal theory alleged. (*Acevedo v. eXp Realty, LLC* (C.D. Cal. 2024) 713 F.Supp.3d 740, 790, citing *Doe #21*, *supra*.)

“[T]he plain meaning of statutory language must control”. (*Pacific Palisades Bowl Mobile Estates, LLC v. City of Los Angeles* (2012) 55 Cal.4th 783, 803.) Despite Sanger Defendants’ repeated assertions that the extension applies only to “causes of action for sexual assault,” the statutory language is clearly much broader than that.

Similarly, Sanger Defendants next argue that causes of action 8-29 are barred for failure to comply with the Government Claims Act. Again, the demurrer is not supported by any authority supporting this argument.

Similar to the SOL extension, Government Code § 945.9 provides, “A claim **arising out of an alleged sexual assault** by a law enforcement officer if the alleged assault occurred while the officer was employed by a law enforcement agency is exempted from all state and local government claim presentation requirements.” (Gov. Code, § 945.9, subd. (a), emphasis added.) The language is effectively the same as that in section 340.16(a).

Since Sanger Defendants do not show that any particular cause of action pled would not fall under the umbrella of *action seeking damages as a result of sexual assault*, or would not constitute a claim arising out of an alleged sexual assault, the demurrers are overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***State of California v. Parkwood Mart, LLC***
Case No. 22CECG01025

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Plaintiff State of California's Motion for Determination of Legal Issues Affecting Compensation and Order to Exclude Evidence of Project Related Damages and Damages to Site Improvements

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Tentative Ruling:

To deny plaintiff's motion for determination of legal issues affecting compensation and order to exclude evidence of project related damages and damages to site improvements. (Code Civ. Proc., § 1260.040.)

Explanation:

Under Code of Civil Procedure, section 1260.040, subdivision (a), "If there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation."

Here, the State of California moves to exclude evidence that defendant may attempt to submit at trial regarding their alleged damages resulting from severance of the subject parcel, removal of improvements on the parcel, and any other damages that are not a direct result of the taking of the parcel. The State alleges that it filed the present action in order to take a small part of defendants' property for the purpose of a temporary construction easement (TCE) related to the construction of the High Speed Rail project. The TCE ran for 36 months from January of 2023 to January of 2026, and has now expired.

The State alleges that it did not actually use the TCE for any construction activities and it did not remove any improvements or cause any other damage to defendants' property during the easement's term. Therefore, plaintiff contends that defendants should not be allowed to introduce evidence of any construction-related harm or removal of improvements. Plaintiff argues that defendants' expert's opinion that defendants suffered \$580,000 in severance damages is completely unsupported by any evidence and should be excluded as speculative, as he merely assumed without any factual foundation that plaintiff removed improvements from the parcel.

In addition, plaintiff argues that defendants are bound by a 2017 judgment entered in an earlier condemnation action between the State and the prior owner of the

subject property, which settled all claims for damages arising out of the taking of the property in the prior action. (See *State of California v. DSS, LP, Fresno Sup. Ct.* case no. 15CECG01025.) Therefore, plaintiff concludes that defendants cannot seek any damages related to the construction of the High-Speed Rail project other than those directly related to the subject TCE.

In support of its argument that the judgment in the previous action binds the defendants in the present case and prevents them from seeking damages that are not related to the subject TCE, the State argues that the lis pendens recorded in the prior case placed the defendants on notice of the pending litigation and resulted in the new property owners being bound by the judgment. "A lis pendens provides constructive notice of the litigation, such that any judgment later obtained in the action relates back to the filing of the lis pendens. A lis pendens clouds title until the litigation is resolved or the lis pendens is expunged, and any party acquiring an interest in the property after the action is filed will be bound by the judgment. Even after judgment, a lis pendens remains effectively on the record unless a statutory ground for expungement is established." (*Slintak v. Buckeye Retirement Co., L.L.C., Ltd.* (2006) 139 Cal.App.4th 575, 586–587, citations omitted.)

Here, the State recorded a lis pendens on the property on May 20, 2015 when the prior action was filed. (Exhibit 2 to State's Request for Judicial Notice.) A final judgment was entered in the prior action on April 18, 2017. (Exhibit 1 to Request for Judicial Notice.) The judgment states that, "[t]hese payments shall be in full payment for all of these defendants' claims of just compensation arising out of the condemnation of Parcels MF-10-0070-1; MF-10-0070-2 and MF-100180-1, including, without limitation, defendants' claims for the fair market value of the real and personal property taken, severance damages, loss of rents, loss of business goodwill, precondemnation damages, and all damages of every kind and nature suffered or to be suffered by reason of plaintiff's acquisition of Parcels MF-10-0070-1; MF-10-0070-2 and MF-10-0180-1, and the construction and use of the project in the manner proposed by plaintiff." (*Id.* at p. 3, lines 6-12.) The Final Order in Condemnation resolving the prior case was filed on June 22, 2017 and recorded on June 27, 2017. (Request for Judicial Notice, Exhibit 8.) Defendant Parkwood Mart purchased the property in July of 2017, with the grant deed recorded on July 28, 2017. (Request for Judicial Notice, Exhibit 3.) Thus, the State concludes that the recorded lis pendens placed Parkwood on notice of the judgment entered in the prior case, and therefore Parkwood is bound by its terms, including that any claims for damages related to the High-Speed Rail project have been settled.

However, under the terms of the Final Order in Condemnation filed in the prior action, the lis pendens was withdrawn when the order was entered. "IT IS FURTHER ORDERED, ADJUDGED AND DECREED that the Notice of Pendency of Action recorded in this action on May 20, 2015, as Document No. 15-0062199-00, of the Official Records of Fresno County, California is hereby withdrawn." (Exhibit 8 to Request for Judicial Notice, Final Order in Condemnation, p. 5, lines 25-27.) The Final Order was signed by Judge Hamilton on June 22, 2017 and entered the same day. (*Id.* at p. 6.) Therefore, the lis pendens was withdrawn on June 22, 2017, and it was no longer in effect at the time of the sale to Parkwood in July of 2017. Consequently, the fact that the State recorded a lis pendens in 2015 does not mean that Parkwood was bound by the judgment and order entered in April and June of 2017.

The State also argues that the Grant Deed conveying the property to Parkwood stated that the conveyance was subject to the Final Order in Condemnation recorded June 27, 2017, and thus defendants were on notice of the Final Order and its terms when they purchased the property. (Exhibit 3 to Request for Judicial Notice, Grant Deed, Exhibit A, p. 3, fifth paragraph.) However, while the Grant Deed does state that the conveyance is subject to the Final Order of Condemnation, which gave a portion of the property to the State for “rail purposes”, the language of the Grant Deed says nothing about the fact that the parties to the prior action agreed to settle all claims related to the condemnation as part of the judgment. The recorded Final Order in Condemnation itself also says nothing about the previous property owner, DSS LP, settling all claims related to the project as part of the resolution of the case. (Exhibit 8 to Request for Judicial Notice.) Thus, the State has not shown that Parkwood was bound by the judgment in the prior action simply because the Grant Deed stated that the property was being conveyed subject to the Final Order in Condemnation.

The State argues that the defendants have already been fully compensated for any claims that they might bring related to the taking of their property, as stated in the final judgment entered in the prior action. However, there is no evidence that the present property owner, Parkwood Mart, was a party to the prior action. The judgment in the prior action only names the State Department of Public Works, DSS, LP, DSS Hotels, Inc. Wilshire Bank, and Does 1 to 50 as parties. (Exhibit 1 to Request for Judicial Notice.) The State and DSS were the only parties to the stipulated judgment. (*Ibid.*) Parkwood's CEO, Chanranjit Singh, denies that Parkwood is affiliated with DSS, LP in any way, and claims that they are wholly separate entities. (Singh decl., ¶ 8.) There is no evidence that Parkwood was involved in the settlement of the prior action or that it received any funds as a result of the settlement. Thus, the State has not shown that Parkwood agreed to be bound by the terms of the settlement, or that it has been compensated for any damages related to the taking of its property.

In its reply, the State argues for the first time that defendants are barred from bringing their claims for additional severance and other damages by the doctrines of res judicata and collateral estoppel because they are bound by the judgment entered in the prior action. The State argues that Parkwood and DSS were in privity with each other as a result of the purchase agreement for the property, and thus Parkwood is bound by the settlement and judgment in the prior action.

“As generally understood, ‘[t]he doctrine of *res judicata* gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy.’ The doctrine ‘has a double aspect.’ ‘In its primary aspect,’ commonly known as claim preclusion, it ‘operates as a bar to the maintenance of a second suit between the same parties on the same cause of action.’ ‘In its secondary aspect,’ commonly known as collateral estoppel, ‘[t]he prior judgment ... “operates”’ in ‘a second suit ... based on a different cause of action ... “as an estoppel or conclusive adjudication as to such issues in the second action as were actually litigated and determined in the first action.”’ ‘The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding.’” (*People v. Barragan* (2004) 32 Cal.4th 236, 252–253, citations and italics omitted.)

In the present case, the State has not shown that Parkwood was either a party to the prior action or in privity with a party to the prior action at any time up to the entry of the judgment. The only parties to the action who entered into the stipulated judgment were the State and DSS, not Parkwood. Nor is there any evidence that Parkwood had any type of relationship with DSS during the pendency of the prior action, which terminated in June of 2017. Parkwood did not purchase the property from DSS until July of 2017, about a month after the judgment between the State and DSS was entered. Thus, there is no basis for applying the doctrines of *res judicata* or collateral estoppel to bind Parkwood to the terms of the judgment in the DSS action, as Parkwood was not a party or in privity with a party to that action at the time of the judgment. As a result, the court intends to deny the State's motion to the extent that it seeks a determination that Parkwood is bound by the terms of the judgment in the DSS case.

Next, the State argues that, since it did not conduct any construction activities on defendants' property and did not remove any improvements during the 36 months that the TCE was in effect, defendants are not entitled to any severance or construction-related damages arising from the TCE.

In order to support a claim for severance damages, a property owner must provide evidence that the taking interfered with the owner's actual intended use of the property. (*Metropolitan Water Dist. of So. California v. Campus Crusade for Christ, Inc.* (2007) 41 Cal.4th 954, 975.) For example, "If [the owner] had sold the property during the construction period and if the ongoing construction had temporarily lowered the sales price of the property, it would appear that [the owner] would be entitled to recover that loss from [the government agency]." (*Ibid*, citations omitted, italics in original.) In addition, the property owner may be entitled to damages where the project results in substantial but temporary interference with the property owner's rights of possession or access. (*Ibid*, citing *People v. Ayon* (1960) 54 Cal.2d 217, 229.)

Here, the State contends that Parkwood cannot show that it suffered any damages due to the 36-month TCE because no construction activities occurred on the property and no improvements were removed. The State argues that the court should exclude any portions of defendants' expert's appraisal regarding severance damages, as the expert has simply assumed that the State had the exclusive right to access and possess the parcel, that defendants were unable to access the parcel, and that the State removed of all improvements from the property. The State contends that there is no factual basis for any of the expert's assumptions, and that the evidence actually shows that the State did not exclusively occupy the parcel, conduct any construction on the parcel, or remove any improvements. (Abouzedan decl., ¶¶ 11-16.)¹

However, according to defendant's CEO, the State used the TCE to park vehicles, and it denied access to the site by blocking the driveways into Parkway's property. (Singh decl., ¶¶ 3, 5.) Singh claims that the driveways were rendered unusable for a period of about six weeks from August 2025 to September 2025. (*Id.* at ¶ 5.) Currently, the smaller driveway is usable, but the northern driveway is still closed and blocked by orange, water-filled K-rails. (*Id.* at ¶ 6.) Also, Singh claims that the State removed and

¹ Defendants have objected to plaintiff's counsel Gregory Rinehart's declaration in support of the motion. The court intends to overrule objections 1-3, and sustain objections 4-12 (legal conclusions, hearsay, and lack of personal knowledge).

replaced a water line, a power line, and a sprinkler line in the vicinity of the TCE area. (*Id.* at ¶ 4.)

Thus, there is conflicting evidence with regard to the issue of whether the State used the TCE for construction purposes, excluded defendants from accessing and using the parcel, and removed any improvements from the parcel. At this point, it would be premature to make any final determination of whether the State's use of the TCE caused actual damage to defendants' actual intended use of the property that would warrant awarding severance damages or other damages for lost improvements, construction noise and vibration, etc. Therefore, the court intends to deny the motion to exclude defendants' expert's opinions regarding severance and other damages resulting from use of the TCE.

Finally, the State moves to exclude the defendants' experts' valuation because it is allegedly based on the false assumption that the property is 1.42 acres with 200 feet of frontage. The State contends that the property is now 0.03 acres smaller due to its acquisition of the parcels at issue in the prior *DSS* action, so the expert's valuation is based on incorrect data and should be excluded. The State also contends that the expert's valuation fails to take into account the existing construction activities that were ongoing as early as 2017, and for which defendants were already compensated by the judgment in the *DSS* action.

However, as discussed above, the State has not shown that Parkwood actually received any of the compensation from the prior action. Parkwood was not a party to the *DSS* action, nor is there any evidence that it was in privity with DSS at the time the judgment was entered in that action. As a result, the State has not established that Parkwood cannot seek damages related to any construction activities on the new TCE.

Also, to the extent that the State argues that defendants' expert's valuation is based on an incorrect assumption about the size of the affected parcel, defendants' expert has stated in his declaration in opposition to the motion that the difference in parcel size is insignificant and does not affect his estimate of damages. (Mason decl., ¶¶ 7.) The court agrees that the difference of 0.03 acres is too small to make a substantial difference in the valuation. Such a minor difference does not warrant excluding the expert's valuation at trial. Therefore, the court intends to deny the motion to exclude the valuation.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Aguilar vs Bal***
Superior Court Case No. 21CECG03169

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

Petition submitted by Petitioner seeks approval for the compromise of minor claimant's claim resulting from a motor vehicle accident. However, the petition has two issues that need to be addressed before the settlement can be approved.

First, item 8.a. indicates Minor has recovered from her injuries. The court lacks any medical records to corroborate this assessment. The only medical record provided is from June 12, 2019 and Minor was suffering from her injuries at that time.

Second, item 12. is not filled out. Minor went to the hospital and the petition does not indicate how the bills were paid or if any money is owing.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/03/26 .
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **N.F. v. Gruber, et al.**
Superior Court Case No. 24CECG01966

Hearing Date: August 5, 2026 (Dept. 501)

Motion: (1) by Defendant Fresno Unified School District for Summary Judgment
(2) by Defendant Lea Gruber for Summary Judgment

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant Defendant Fresno Unified School District's motion for summary judgment. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

To grant Defendant Lea Gruber's motion for summary judgment. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

Plaintiff N.F., a minor, brings this action for damages alleging that he was verbally and sexually harassed by defendant Lea Gruber, a teacher for defendant Fresno Unified School District ("FUSD"). Plaintiff's Second Amended Complaint alleges two causes of action against FUSD, the second cause of action alleging vicarious liability for negligence of its employee pursuant to Government Code section 815.2 and the third cause of action alleging breach of mandatory duty pursuant to Government Code section 815.6. Against defendant Gruber, plaintiff alleges a single cause of action for negligence. Both defendants now move for summary judgment on the basis that they are entitled to immunity under Education Code section 44808.

As the moving party, defendant bears the burden of proving that there is a complete defense to each challenged cause of action or that plaintiff cannot establish one or more elements of each of its challenged causes of action. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) If that burden is met, plaintiff can defeat the motion by demonstrating a triable issue of material fact. (*Martinez v. Enterprise Rent-A-Car Co.* (2004) 119 Cal.App.4th 46, 52-53.) In determining whether a triable issue of material fact exists, the moving party's evidence is strictly construed, while that of their opponent's is liberally construed. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 20.)

“An ‘immunity’ is ‘[a]ny exemption from a duty [or] liability’ [Citation.] It ‘avoids liability in tort under all circumstances, within the limits of the immunity itself; it is conferred, not because of the particular facts, but because of the status or position of the favored defendant; and it does not deny the tort, but [rather] the resulting liability....’ [Citation.]’ [Citation.] When the law grants an immunity, it does not mean that the defendant’s conduct is not tortious, but rather that the defendant is absolved from liability.” (*Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336, 378.)

Defendant FUSD’s Motion for Summary Judgment

Defendant FUSD argues it is entitled to immunity from plaintiff’s claims of vicarious liability and breach of mandatory duty under Education Code section 44808. As alleged in the operative complaint, the school district’s liability is premised on its failure to supervise and protect plaintiff from harm on campus (SAC, ¶¶ 23-24) and due to its failure to supervise its employee Gruber such that the harassment occurred (SAC, ¶¶ 24, 33).

Education Code section 44808 states,

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances.

In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Ed. Code, § 44808, emphasis added.)

“Section 44808 ‘ “thus limits the liability of schools for after hours, off-campus activity, absent a specific undertaking.”’ The provision ‘ “ ‘grants a district [and its employees] immunity [for a student’s injuries] unless [the] student was (or should have been) directly supervised during a specified undertaking.’”’” (*Taylor v. Los Angeles Unified School District* (2025) 112 Cal.App.5th 769, 774, internal citations omitted.)

FUSD asserts it is undisputed that the harassment alleged in the complaint consisted to two phone calls by defendant Gruber to plaintiff’s mother on May 13, 2023 at approximately 9:30 p.m. while plaintiff and his mother were at their residence. (UMF Nos. 3, 4, 8, 9.) As the alleged harassing phone calls were made after school hours, while plaintiff was off campus and not during a school-sponsored activity, defendant FUSD argues Education Code section 44808 immunity applies.

The court finds defendant FUSD has met its burden in demonstrating it is entitled to summary judgment on the basis that it is immune from liability from the after-hours, off-campus negligent acts alleged.

In opposition plaintiff does not dispute the material facts supporting FUSD's motion and instead asserts the negligent acts of its employee were done under the color of her authority as a teacher. Plaintiff cites as additional material facts that the phone calls were made based on information learned at school and using the phone number defendant Gruber obtained from school records. (AMF Nos. 1, 2, 7, 8, 12.) Defendant Gruber also introduced herself as a teacher and was calling to follow up on her concerns regarding her student. (AMF Nos. 10, 11, 13.) Plaintiff argues the use of Gruber's position as a teacher creates a triable issue of act as to whether there was a specific undertaking by defendant Gruber and exception to immunity.

Plaintiff describes defendant Gruber's conduct as a school-related undertaking in her investigation of the complaints against plaintiff occurring on campus that later resulted in injury off campus. (*Hoyem v. Manhattan Beach City School District* (1978) 22 Cal.3d 508; *Perna v. Conejo Valley Unified School District* (1983) 143 Cal.App.3d 292.) The authorities relied upon by plaintiff are distinguishable.

In *Hoyem v. Manhattan Beach City School District*, a summer school student left campus before the end of the scheduled day and was struck by a motorcycle. (*Hoyem, supra*, 22 Cal.3d at p. 512.) The school district argues there was no duty to supervise students to prevent off-campus accidents unless the school had specially undertaken to provide off-campus supervision. (*Id.*, at p. 514.) The court held the school had a duty to exercise reasonable care in supervising its pupils while on school premises and a cause of action for negligence based on the school's failure to supervise the student while on campus was stated. (*Id.*, at p. 519.) The facts of *Hoyem* are not analogous with those of the case at bench. The negligent off-campus incident occurred during the school day while the student was under the supervision of the school. Here, it is undisputed that the phone calls occurred while plaintiff was at his residence and well after the end of the school day. Unlike the student in *Hoyem* who should have been in class when the off-campus incident occurred, there is no reason to believe plaintiff should have been under the supervision of the school when the phone calls occurred.

In *Perna v. Conejo Valley Unified School District*, two students stayed after school at the direction of a teacher past the time when the crossing guard was no longer on duty and were struck by a vehicle when crossing in the crosswalk. (*Perna, supra*, 143 Cal.App.3d at p. 294.) The court found that the complaint stated a cause of action based on the negligent conduct of keeping the children after school occurring while still on school premises. (*Id.*, at p. 296.)

Here, in contrast with both *Hoyem* and *Perna*, the negligence alleged is the after school, off-campus phone calls regarding plaintiff, not defendant Gruber's questioning of the alleged victim on campus at the end of the school day. The additional facts raised by plaintiff do not support finding there is a question of fact as to whether there was on campus negligence. The additional facts regarding defendant Gruber's using information she learned on campus also do not support finding there is a question of act as to whether there was a specific undertaking to supervise or care for plaintiff at the time of the alleged negligent incidents.

Plaintiff alleges FUSD was negligent in failing to supervise and protect plaintiff from harm on campus and negligent in hiring and supervising defendant Gruber. (SAC, ¶¶ 24, 36.) These allegations are similar to those of *Taylor v. Los Angeles Unified School District*, where plaintiff argued that the district was liable for the off-campus death of their child who was being babysat by a teacher negligently hired and supervised by the district. (*Taylor, supra*, 112 Cal.App.5th at p. 772.) As in *Taylor*, the negligent act here occurred off-campus, outside of school hours, and unrelated to any school-sponsored event or activity. The court held the Education Code section 44808 immunity precluded the school district's liability and rejected the argument to extend the exception to immunity to incidents that could be traced back to negligent hiring and supervision. (*Id.*, at p. 776.) "This interpretation would run afoul of section 44808's express purpose of limiting school district liability for harm that occurs to students when they are not on school property or engaged in school-sponsored or school-supervised activities. (*Ibid.*)

The court finds the immunity under Education Code section 44808 applies to defendant FUSD. Accordingly, defendant FUSD's motion for summary judgment of the second amended complaint is granted.

Defendant Lea Gruber's Motion for Summary Judgment

Defendant Gruber argues there is no dispute that the negligent acts alleged, two phone calls to plaintiff's home, occurred while plaintiff was at his home and after school hours and are alleged by plaintiff to have been made while in the course and scope of Gruber's employment with FUSD. (UMF Nos. 1-6.) As such, defendant Gruber asserts she is entitled to immunity under Education Code section 44808 as an employee of the school district.

Education Code section 44808 states,

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances.

In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Ed. Code, § 44808, emphasis added.)

"Section 44808 ' "thus limits the liability of schools for after hours, off-campus activity, absent a specific undertaking." The provision ' " 'grants a district [and its employees] immunity [for a student's injuries] unless [the] student was (or should have been) directly supervised during a specified undertaking.'"" (*Taylor v. Los Angeles Unified School District, supra*, 112 Cal.App.5th 769, 774, internal citations omitted.)

(35)

Tentative Ruling

Re: **DeRaffaele v. Crane et al.**
Superior Court Case No. 22CECG02759

Hearing Date: August 5, 2026 (Dept. 501)

Motion: By Plaintiff for Entry of Default Judgment

Tentative Ruling:

To deny without prejudice.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

A party seeking a default judgment on declarations must use a mandatory Form CIV-100, and must additionally file: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status as to each defendant against whom the judgment is sought; (6) a proposed form of judgment; (7) a dismissal of all parties against whom the judgment is not sought; (8) exhibits as necessary; and (9) a request for attorney fees if applicable. (Cal. Rules of Ct., rule 3.1800(a).)

Here, while a CIV-100 was filed, none of the various attempts indicate the seeking of a court judgment. Further, plaintiff Michael DeRaffaele ("Plaintiff") fails to submit a summary of the case or admissible evidence in support. The lack of evidence is problematic. A "default judgment ... can be entered only upon proof to the court of the damage sustained." (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559, 560; see also Code Civ. Proc., § 585, subd. (b) ["The court shall ... render judgment in the plaintiff's favor ... not exceeding the amount stated in the complaint ... as appears by the evidence to be just."])

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)